

25PSCV03301 25PSCV03301

County: los-angeles

Division: Civil Law and Motion

Department: G

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Case Number: 25PSCV03301 Hearing Date: August 12, 2026 Dept: G

Defendants Barnes & Noble Booksellers,
Inc. and Ron Budiarto's Demurrer to Plaintiff Eduardo Solano's Complaint

Respondent:

Plaintiff Eduardo Solano

TENTATIVE

RULING

Defendants

Barnes & Noble Booksellers, Inc. and Ron Budiarto's Demurrer to Plaintiff
Eduardo Solano's Complaint is CONTINUED.

BACKGROUND

This

is a premises liability action. In

December 2019, defendant Barnes & Noble Booksellers, Inc. (B&N)

allegedly contracted with defendant Commercial Fire, LLC (Commercial Fire) to provide
fire sprinkler and related services. Commercial

Fire allegedly subcontracted with defendant All Purpose Fire Extinguisher Corp.

(APFE) to provide those services to B&N.

On September 15, 2023, plaintiff Eduardo Solano (Solano) allegedly
slipped and fell at a B&N location managed by defendant Ron Budiarto
(Budiarto).

On

September 11, 2025, Solano filed the Complaint, alleging a sole cause of action

for negligence/premises liability. (On

June 24, 2026, Solano named APFE as a Doe Defendant. On June 30, 2026, Solano named Budiarto as a Doe Defendant.)

On

March 17, 2026, Commercial Fire filed a Cross-Complaint, alleging causes of action for (1) express indemnity, (2) express indemnity (duty to defend), (3) express indemnity (duty to indemnify), (4) implied indemnity, (5) equitable indemnity, (6) contribution/apportionment of fault, and (7) declaratory relief.

On

March 26, 2026, B&N filed a Cross-Complaint, alleging causes of action for (1) express indemnity, (2) breach of contract, (3) equitable indemnity, (4) contribution, (5) declaratory relief, (6) apportionment of fault, and (7) declaratory relief.

On

June 12, 2026, APFE filed a Cross-Complaint, alleging causes of action for (1) equitable indemnity, (2) partial indemnity, (3) contribution, (4) apportionment, and (5) declaratory relief.

On

July 2, 2026, B&N and Budiarto filed this demurrer to the Complaint. On July 31, 2026, Solano filed the opposition, and there is no reply.

The

demurrer is set for hearing on August 13, 2026.

ANALYSIS

B&N

and Budiarto specifically demur to the sole cause of action of the Complaint on the ground that it fails to allege sufficient facts to support a cause of action against Budiarto. For the following reasons, the demurrer is CONTINUED.

Legal

Standard

Pursuant

to Code of Civil Procedure section 430.41, prior to filing a demurrer, “the demurring party shall meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.”

(Code Civ. Proc., §430.41, subd. (a).)

It further provides that “the demurring party shall identify all of the specific causes of action that it believes are subject to demurrer and identify with legal support the basis of the deficiencies.” (Code Civ. Proc., § 430.41, subd. (a)(1).)

While

Code of Civil Procedure section 430.41, subdivision (a)(4) makes clear failing to meet and confer is not grounds to overrule a demurrer, courts “are not required to ignore defects in the meet and confer process” and if the court determines “no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.” (Dumas v. Los Angeles County Bd. of Supervisors (2020) 45 Cal.App.5th 348, 355 & fn. 3.)

Discussion

Counsel

for B&N and Budiarto provides a declaration indicating that they met and conferred with Solano’s counsel but did not specify whether they met and conferred in person, by video conference, or by telephone as required by Code of Civil Procedure sections 430.41, subdivision (a). (See Dem, Johnson Decl., ¶ 2.) According to Solano’s counsel, counsel for

B&N and Budiarto did not meet and confer by calling Solano’s counsel. (See Opp., Khoshidi Decl., ¶ 5.)

Therefore,

the demurrer is CONTINUED, and counsel for B&N and Budiarto is ORDERED to MEET AND CONFER with Solano’s counsel by telephone, video conference, or in person and FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.

CONCLUSION

For

these reasons, the demurrer is CONTINUED to a date to be determined at the hearing in Department G (Pomona).

Defendants

Barnes & Noble Booksellers, Inc. and Ron Budiarto are ORDERED to MEET AND CONFER with plaintiff Eduardo Solano regarding the present demurrer and to FILE a SUPPLEMENTAL DECLARATION describing such meet and confer efforts, including whether the attempts were made by telephone, video conference, or in person, at least nine (9) court days before the next scheduled hearing on the demurrer.